

Experts Corner

SUMMARY OF 51 LANDMARK CONSTITUTIONAL LAW JUDGEMENTS OF 2024 BY THE SUPREME COURT

{ Part I of III }



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State of U.P. v. Assn.of Retired Supreme Court & High Court Judges, 2024 SCC OnLine SC 14
Coram: 3-Judge Bench

The appeals arose from orders of the Allahabad High Court, with the issue revolving around separation of powers, exercise of criminal contempt jurisdiction and the practice of frequently summoning government officials to court.

The Court held that the appearance of government officials before courts must not be reduced to a routine measure wherever Government is a party but must be resorted to in limited circumstances. The power to summon government officials cannot be used as a tool to pressurize the Government, particularly under the threat of contempt. Without consent on affidavit or instructions to law officers in writing courts must also refrain from relying on mere oral undertakings by government officials in the courts.

The Court framed a standard operating procedure addressing the appearance of the officials before the courts, aiming to serve as a guiding framework, steering the Court away from arbitrary and frequent summoning of government officials and promoting maturity in their functioning.

**Bilkis Yakub Rasool v.
Union of India, (2024) 5 SCC 481
Coram: 2 Judge Bench**

This case was filed challenging the remission granted to the 11 convicts who had been sentenced to life imprisonment for the commission of the offences of gang rape and murder of petitioner's relatives during the 2002 Gujarat riots.

In view of Section 432(7) read with Sections 432(1) and (2) CrPC, the Court held that the Government of the State of Gujarat had no jurisdiction to entertain the prayers seeking remission of Respondents 3 to 13 herein as it was not the appropriate Government within the meaning of the aforesaid provisions. Hence, the orders of remission dated 10-8-2022 made in favour of the convicts were illegal, vitiated and therefore, quashed.

Chandigarh

Housing Board v. Tarsem Lal

Coram: 2-Judge Bench

The appeal came to Supreme Court against the judgment of the Punjab & Haryana High Court, which held that candidate from another State holding Scheduled Tribes certificate will not be debarred from availing the benefit of reservation for allotment of dwelling units under the policy of the State Government in the Union Territory of Chandigarh.

A person belonging to a Scheduled Caste in one State cannot be deemed to be a Scheduled Caste enjoying the same status of a Scheduled Caste in relation to any other State to which he migrates for the purposes of employment or education. Since the enlisting and issuance of notification by the President under Articles 341 and 342 is confined to the geographical territories of the State/Union Territory concerned, therefore the benefit/advantages available in one State cannot be transplanted or claimed in another State on the basis that the very same nomenclature is mentioned either as Scheduled Caste or Scheduled Tribe.

**Assn. for Democratic Reforms v. Election
Commission of India, (2025) 2 SCC 732
Coram: 2 Judge Bench**

The writ petition public interest litigation (PIL) was filed seeking a relief of return to the paper ballot system or for an arrangement of giving of printed slip from the voter verifiable paper audit trail machine (for short, “Vvpat”) and put in the ballot box for counting.

The fundamental right of the voters to ensure their vote is accurately recorded and counted, cannot be equated with the right to have 100% counting of Vvpat slips or right to physical access to the Vvpat slips. The former is the right itself, whereas the latter is a plea to protect on how to secure the right. An over complex voting system may engender doubt and certain uncertainty, thereby easing the chances of manipulation, accompanied by voters' disenchantment and disinterest in the process.

**State of H.P. v. Yogendera Mohan
Sengupta 2024 SCC OnLine SC 36
Coram: 2-Judge Bench**

Challenge was made to the judgment an order of the National Green Tribunal, wherein various directions were issued pertaining to development/master plan framed for the Shimla Planning Area.

The Court held that there are sufficient safeguards that balance the development as well as environmental and ecological concerns. The development plan has been finalised after inputs from various experts from various fields, after taking recourse to statutory provisions and undergoing the rigors there too. The same therefore cannot be stalled in its entirety putting the entire developmental activities to a standstill.